CITY OF SAN JOSÉ, CALIFORNIA

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City Clerk

STATE OF CALIFORNIA)
COUNTY OF SANTA CLARA)
CITY OF SAN JOSE)

I, Toni J. Taber, City Clerk & Ex-Officio Clerk of the Council of and for the City of San Jose, in said County of Santa Clara, and State of California, do hereby certify that **"Ordinance No. 30984",** the original copy of which is attached hereto, was passed for publication of title on the **5th day of December 2023,** was published in accordance with the provisions of the Charter of the City of San Jose, and was given final reading and adopted on the **12th day of December, 2023,** by the following vote:

AYES:	BATRA, CANDELAS, COHEN, DAVIS, FOLEY, JIMENEZ, ORTIZ, TORRES, KAMEI, MAHAN.
NOES:	NONE.
ABSENT:	DOAN.
DISQUALIFIED:	NONE.
VACANT:	NONE.

Said Ordinance is effective as of the **12th day of January 2024.**

IN WITNESS WHEREOF, I have hereunto set my hand and affixed the corporate seal of the City of San Jose, this **12th day of December, 2023.**

(SEAL)_____
TONI J. TABER, CMC
CITY CLERK & EX-OFFICIO
CLERK OF THE CITY COUNCIL

/DA/

ORDINANCE NO. 30984

AN ORDINANCE OF THE CITY OF SAN JOSE AMENDING VARIOUS SECTIONS OF TITLE 20 (ZONING ORDINANCE OR ZONING CODE) OF THE SAN JOSE MUNICIPAL CODE TO: (A) ELIMINATE COMMERCIAL SPACE REQUIREMENT FOR "100% DEED-RESTRICTED AFFORDABLE HOUSING" AND INCORPORATE THOSE REFERENCES WITHIN (1) CHAPTER 20.40, 'COMMERCIAL ZONING DISTRICT AND PUBLIC/ QUASI-PUBLIC DISTRICT,' SECTION 20.40.100; (2) CHAPTER 20.55, 'URBAN VILLAGE AND MIXED-USE ZONING DISTRICT,' SECTIONS 20.55.100 AND 20.55.203; (3) CHAPTER 20.70, 'DOWNTOWN ZONING REGULATIONS,' SECTION 20.70.100 TO AMEND TABLE 20-140; (4) CHAPTER 20.75, 'PEDESTRIAN ORIENTED ZONING DISTRICTS,' SECTION 20.75.200; (B) REPEAL SECTIONS 20.30.460, 20.30.470, 20.30.480, AND 20.30.490 RELATED TO ACCESSORY DWELLING UNITS FROM PART 4.5, AMEND THE TITLE OF PART 4.5 TO 'TINY HOME ON WHEELS' AND AMEND SECTION 20.30.495, 'TINY HOME ON WHEELS (THOW)'; INCORPORATE MINOR REFERENCE EDITS TO TABLE 20-50, SECTION 20.30.100, CHAPTER 20.30, AND SECTION 20.55.201, CHAPTER 20.55; ADD NEW PART 2.75, 'ACCESSORY DWELLING UNITS,' IN CHAPTER 20.80, 'SPECIFIC USE REGULATIONS;' AND (C) AMEND CHAPTER 20.200, 'DEFINITIONS,' TO ADD NEW SECTIONS 20.200.547, 'HOUSING, AFFORDABLE DEED RESTRICTED HOUSING' AND 20.200.549, 'HOUSING, EMPLOYEE'; AND INCORPORATE MINOR EDITS TO SECTION 20.200.324, 'DWELLING- JUNIOR ACCESSORY DWELLING UNIT OR JADU; AND TO MAKE OTHER TECHNICAL, NON-SUBSTANTIVE, OR FORMATTING CHANGES WITHIN THOSE SECTIONS OF TITLE 20 OF THE SAN JOSE MUNICIPAL CODE

WHEREAS, on November 22, 2023, the Santa Clara County Airport Land Use Commission ("ALUC") issued a determination that this Ordinance is inconsistent with the San José Mineta International Airport ("SJC") and Reid-Hillview Airport ("RHV") Comprehensive Land Use Plans ("CLUPs"), unless certain additional language is included in the ordinance; and

WHEREAS, the following recitals related to existing Envision San José General Plan Policies are being included in this Ordinance to address the ALUC's determination; and

WHEREAS, Envision San José General Plan Policy TR-14.3 requires that for development in the Airport Influence Area overlays, and uses and development are consistent with the height, safety and noise policies identified in the ALUC CLUPs for SJC and RHV airports, therefore:

- When measuring development height for consistency with the SJC and RHV CLUPs Part 77 Surfaces, height is to be measured from mean sea level (MSL) to the top of the highest point of any proposed structure. Height of any proposed structure is subject to height policies set forth in the SJC and RHV CLUPs and may not exceed the Part 77 Surface immediately above that proposed structure. However, in the case of structures or objects within the SJC AIA, if that structure or object is above the FAR Part 77 surface, the proponent may submit the project data to the FAA for evaluation and air navigation hazard determination, in which case the FAA's determination shall prevail.

- To ensure compliance with Safety Zone policies in the SJC and RHV CLUPs, all proposed housing development within the various Safety Zones must conform to the applicable density allowances and open space / open area requirements as outlined in Table 4-2 of the respective CLUPs.

- To ensure compliance with noise related policies, all proposed housing development must conform to the Community Noise Equivalent Level Noise Compatibility Policies as outlined in Table 4-1 and Figure 5 and the policies of the respective CLUPs; and

WHEREAS, Envision San José General Plan Policy TR-14.4 requires avigation and "no build" easement dedications, setting forth maximum elevation limits as well as for acceptance of noise or other aircraft related effects, as needed, as a condition of approval of development in the vicinity of airports, therefore:

- Where legally allowed, dedication of an avigation easement to the City of San José shall be required to be offered as a condition of approval on all projects located within the SJC Airport Influence Area, other than reconstruction projects as defined in paragraph 4.3.7 of the SJC CLUP. All such easements shall be similar to that shown as Exhibit 1 in Appendix A of SJC CLUP.

- Where legally allowed, dedication of an avigation easement to the County of Santa Clara shall be required to be offered as a condition of approval on all projects located within the RHV Airport Influence Area, other than reconstruction projects as defined in paragraph 4.3.7 of the RHV CLUP. All such easements shall be similar to that shown as Exhibit 1 in Appendix A of RHV CLUP.

WHEREAS, pursuant to Section 15168(c)(2) of the CEQA Guidelines, the City of San José has determined that this Ordinance is pursuant to, in furtherance of and within the scope of the previously approved program evaluated in the Final Program Environmental Impact Report for the Envision San José 2040 General Plan (the "FEIR"), for which findings were adopted by City Council through its Resolution No. 76041 on November 1, 2011, and Supplemental Environmental Impact Report (the "SEIR"), through Resolution No. 77617, adopted by City Council on December 15, 2015, and Addenda thereto, and does not involve new significant effects beyond those analyzed in the FEIR and SEIR; and

WHEREAS, the City Council of the City of San José is the decision-making body for this Ordinance; and

WHEREAS, this Council of the City of San José has considered and approves the information contained in the FEIR, as supplemented and addenda thereto, and related City Council Resolution Nos. 76041 and 77617 and the determination of consistency therewith prior to taking any approval actions on this Ordinance;

NOW, THEREFORE, BE IT ORDAINED BY THE COUNCIL OF THE CITY OF SAN JOSE:

SECTION 1. Section 20.30.100 of Chapter 20.30 of Title 20 of the San José Municipal Code is amended to read as follows:

20.30.100 Allowed Uses and Permit Requirements

A. Permitted" land uses are indicated by a "P" on Table 20-50.

B. "Conditional" uses are indicated by a "C" on Table 20-50. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Conditional Use Permit as set forth in Chapter 20.100.

C. "Special" uses are indicated by an "S" on Table 20-50. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Special Use Permit as set forth in Chapter 20.100.

D. "Restricted" land uses are indicated by an "R" on Table 20-50. These uses may occur in such designated districts, as an independent use, but only upon issuance of and in full compliance with a valid and effective zoning code verification certificate as set forth in Chapter 20.100.

E. Land uses not permitted are indicated by a "-" on Table 20-50. Land uses not listed on Table 20-50 are not permitted.

F. When the right column of Table 20-50 includes a reference to a section number or a footnote, the regulations cited in the section number or footnote apply to the use. In addition, all uses are subject to any other applicable provision of this Title 20 and any other title of the San José Municipal Code.

Table 20-50
Residential Zoning Districts Use Regulations

Use	Zoning District				Applicable Sections & Notes
	R-1	R-2	R-M	R-MH	
Residential Uses					
One-family dwelling	P	P	P	C	Note 1 and Note 10; Section 20.30.110
Accessory dwelling unit (ADU)	P	P	P	-	Note 2, Note 3, and Note 10; Part 2.75, Chapter 20.80
Two-family dwelling	-	P	P	-	Note 2 and Note 10; Section 20.30.110
Multiple dwelling	-	-	P	-	Note 10
Guesthouse	-	-	C	-	Note 10; Section 20.30.120
Mobilehome parks	-	-	-	P	Note 10
Permanent supportive housing	-	-	P	-	Chapter 20.195
Travel trailer parks	-	-	-	C	

Residential care facility, six or fewer persons	P	P	P	P	
Residential care facility, seven or more persons	-	-	C	C	
Residential service facility, six or fewer persons	P	P	P	P	
Residential service facility, seven or more persons	-	-	C	C	
Single room occupancy living unit facility	-	-	C	-	Note 10; Part 15, Chapter 20.80
Sororities, fraternities, and dormitories occupied exclusively (except for administrators thereof) by students attending college or other educational institutions	-	-	C	-	
Residential Accessory Uses and Improvements					
Accessory buildings and structures	P	P	P	P	Note 3; Section 20.80.200
Home occupations	P	P	P	P	Part 9, Chapter 20.80
Mixed use, residential/commercial	-	-	S	-	Note 9 and Note 10
Agriculture					
Certified farmers' market	S	S	S	S	Note 6
Certified farmers' market, small	P	P	P	P	Part 3.5, Chapter 20.80; Note 6
Neighborhood agriculture	P	P	P	P	Part 9, Chapter 20.80

Education and Training					
Child day care center located on an existing school site or as an incident to an on-site church/religious assembly use involving no building additions or changes to the site	P	P	P	P	
Day care center	S	S	S	S	
School, elementary and secondary (public)	P	P	P	-	
School, elementary and secondary (private)	C	C	C	-	
Entertainment and Recreation					
Equestrian and riding club	C	-	-	-	
Golf course	C	-	-	-	Note 4
Private club or lodge	-	-	C	-	
Swim or tennis club	C	C	C	C	
General Services					
Bed and breakfast inn	C	C	C	-	Section 20.80.110
Outdoor vending, fresh fruits and vegetables	P	P	P	P	Note 6 and Note 7; Part 10, Chapter 20.80;
Health and Veterinary Services					
Emergency ambulance service	C	C	C	C	
Historic Reuse					
Historic landmark structure reuse	C	C	C	C	Part 8.5, Chapter 20.80

Public, Quasi-Public and Assembly Uses					
Cemetery	C	C	C	C	
Church/religious assembly	C	C	C	C	
Museums, libraries, parks, playgrounds, or community centers (privately operated)	C	C	C	C	
Museums, libraries, parks, playgrounds, or community centers (publicly operated)	P	P	P	P	
Transportation and Utilities					
Community television antenna systems	C	C	C	C	
Off-site, alternating use and alternative use parking arrangements	S	S	S	S	Section 20.90.200
Parking establishment, off-street	C	C	C	C	Section 20.90.150
Utility facilities, excluding corporation yards, storage or repair yards and warehouses	C	C	C	C	
Wireless communication antenna	C	C	C	C	Note 8; Sections 20.30.130, 20.30.140, 20.80.1900, 20.100.1300 and 20.80.1915

Wireless communication antenna, slimline monopole	S	S	S	S	Note 8; Sections 20.30.130, 20.30.140, 20.80.1900, 20.100.1300 and 20.80.1915
Wireless communication antenna, building mounted	P	P	P	P	Note 8; Sections 20.30.130, 20.30.140, 20.80.1910, 20.100.1300 and 20.80.1915
Utilities, Electrical Power Generation					
Solar photovoltaic system	P	P	P	P	Sections 20.100.610 C.7 and 20.100.1030 A.6
Stand-by/backup facilities that do not exceed noise or air standards	S	S	S	S	Note 5
Stand-by/backup facilities that do exceed noise or air standards	-	-	-	-	

Notes:

1. Only one one-family dwelling unit per lot in the R-1, R-2, R-M and R-MH districts.

2. A maximum of two primary living units per lot, with Accessory Dwelling Units, are permitted in the R-2 district. Accessory Dwelling Units on a lot in the R-2 district may be permitted without a Development Permit in accordance with the provisions of Part 2.75.

3. No lot may be used solely for an accessory structure or an accessory building.

4. No driving ranges or miniature golf facilities.

5. Stand-by or backup generators that would not otherwise require some permit from the City (including but not limited to building, electrical, or mechanical), and do meet the applicable noise and air standards are not subject to the Special Use Permit requirement.

6. Allowed on school sites, library sites, community center sites, church/religious assembly sites, and other publicly accessible sites that contain government operations including but not limited to United States Post Offices or State of California Department of Motor Vehicles offices.

7. The activity must conform with the location and operational requirements in Section 20.80.820 of Part 10, Chapter 20.80. Allowed for up to eight hours per day for each vending facility, but not to exceed eight hours per day per lot.

8. Certain modifications of existing wireless facilities may be permitted with an Administrative Permit in accordance with Section 20.80.1915 of Chapter 20.80.

9. Permitted or special uses allowed in the CP commercial pedestrian zoning district may be allowed with a Special Use Permit for a residential-commercial mixed use project, except that twenty-four-hour non-residential uses or conditional uses allowed in the CP commercial pedestrian zoning district require a Conditional Use Permit.

10. May be used as Transitional Housing.

SECTION 2. Part 4.5 of Chapter 20.30 of Title 20 of the San José Municipal Code is amended to repeal Sections 20.30.460, 20.30.470, 20.30.480, and 20.30.490, and to read as follows:

Part 4.5

Tiny Home On Wheels

20.30.495 Tiny Home on Wheels (THOW)

Notwithstanding any other provision of this Title to the contrary, Tiny Home on Wheels (THOW) shall be allowed on a lot consisting of One-Family Dwelling, subject to all of the following criteria:

1. The lot does not contain a detached Accessory Dwelling Unit, except the lot may contain an attached Accessory Dwelling Unit or Junior Accessory Dwelling Unit;

2. Only one THOW is allowed on a lot;

3. A THOW shall be subject to ADU permitting requirements in accordance with Section20.80.175, only if the wheels are removed and unit is attached to a conventional foundation;

4. A THOW shall be located in the rear yard of the lot of the One-Family Dwelling with a minimum setback of four (4) feet from any interior side or rear property line and ten (10) feet from a corner property line;

5. If the size of the rear yard is insufficient to accommodate a THOW, a THOW may be located in the interior side yard area and shall meet a minimum front setback of forty-five (45) feet from the front property line and maintain a minimum setback of four (4) feet from an interior side property line;

6. The THOW shall be located a minimum of six (6) feet away from the One-Family Dwelling;

7. The THOW undercarriage (wheels, axles, tongue and hitch) shall be hidden from view from the public right of way;

8. The THOW shall be parked on a paved or alternate pad that include bumper guards, curbs, or other installations adequate to prevent

movement of the THOW. The wheels and leveling or support jacks must sit on a paving surface that meet either of the following criteria:

a. A parking area for a moveable THOW shall be paved with hard, durable asphaltic paving that is at least two inches thick after compaction, or with cement paving at least three inches thick; or

b. Alternative paving materials may consist of porous asphalt, porous concrete, permeable interlocking concrete pavers, permeable pavers, decomposed granite, crushed rock or gravel, plastic or concrete grid system confined on all sides and filled with gravel or grass in the voids, or other similar materials that meet the following requirements:

   i. Permeable interlocking concrete pavers and permeable pavers shall have a minimum thickness of 80 mm (3.14 inches); and

   ii. Products and underlying drainage material shall be installed to meet manufacturers' specifications. Sub-grade soils shall be compacted as required to meet the product installation specifications.

9. No additional parking shall be required for the THOW, and displaced parking resulting from the construction of a THOW is not required to be replaced;

10. The THOW shall be connected to electric, water, and sewer utilities with the issuance of required building permits;

11. The THOW is not required to have sprinklers but shall meet the ANSI A119.5 or NFPA 1192 standards relating to health, fire and life-safety;

12. The THOW shall incorporate all of the following design elements:

    a. Cladding and trim: Materials used on the exterior of the THOW shall exclude single piece composite laminates, or interlocked metal sheathing;

    b. Windows and doors: Windows shall be at least double pane glass, and include exterior trim. Windows and doors shall not have rounded corners;

    c. Roofing: Roofs shall have a minimum of a 2:12 pitch for greater than 50 percent of the roof area and not be composed of wooden shingles;

    d. Extensions. All exterior walls and roof of a THOW used shall be fixed with no slide-outs, tip-outs, nor other forms of mechanically articulating room area extensions;

    e. Mechanical equipment shall be incorporated into the structure and not be located on the roof; and

13. The THOW shall be no greater than two stories, and shall not exceed a maximum height of 16 feet. Maximum height shall be determined in accordance with San José Municipal Code Section 20.200.510.

SECTION 3. Section 20.40.100 of Chapter 20.40 of Title 20 of the San José Municipal Code is amended to read as follows:

20.40.100 Allowed Uses and Permit Requirements

A. "Permitted" land uses are indicated by a "P" on Table 20-90.

B. "Conditional" uses are indicated by a "C" on Table 20-90. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Conditional Use Permit as set forth in Chapter 20.100. "Conditional" uses which may be approved only on parcels designated on the land use/transportation diagram of the General Plan, as amended, with a designation that allows residential use are indicated by a "C GP" on Table 20-90. These uses may be allowed in such designated districts, as a part of mixed use residential/commercial, but only upon issuance of and in compliance with a Conditional Use Permit as set forth in Chapter 20.100.

C. "Conditional" uses requiring City Council approval as the initial decision-making body are indicated by a "CC" on Table 20-90. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Conditional Use Permit approved by the City Council as set forth in Chapter 20.100. Applications for these uses shall first be considered by the Planning Commission at a public hearing of the Commission for the Commission's report and recommendation on the application to the City Council pursuant to the processes set forth in Chapter 20.100.

D. "Special" uses are indicated by an "S" on Table 20-90. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Special Use Permit as set forth in Chapter 20.100. "Special" uses which may be approved only on parcels designated on the land use/transportation diagram of the General Plan, as amended, with a designation that allows residential use are indicated by an "S GP " on Table 20-

90. These uses may be allowed in such designated districts, as a part of mixed use residential/commercial, but only upon issuance of and in compliance with a Special Use Permit as set forth in Chapter 20.100.

E. "Administrative" uses are indicated by an "A" on Table 20-90. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with an Administrative Permit as set forth in Chapter 20.100.

F. "Restricted" land uses are indicated by an "R" on Table 20-90. These uses may occur in such designated districts, as an independent use, but only upon issuance of and in full compliance with a valid and effective zoning code verification certificate as set forth in Chapter 20.100.

G. Land uses not permitted are indicated by a "-" on Table 20-90. Land uses not listed on Table 20-90 are not permitted.

H. When the right column of Table 20-90 includes a reference to a section number or a footnote, the regulations cited in the section number or footnote applies to the use. In addition, all uses are subject to any other applicable provision of this Title 20 and any other title of the San José Municipal Code.

Table 20-90
Commercial Zoning Districts and
Public/Quasi-Public Zoning District Use Regulations

Use	Zoning District					Notes & Section
	CO	CP	CN	CG	PQP	
General Retail						
Alcohol, off-sale - beer and/or wine only	-	C	C	C	-	Note 21; Section 20.80.900
Alcohol, off-sale - full range of alcoholic beverages	-	C	C	C	-	Note 21; Section 20.80.900
Alcohol, off-sale - as incidental to a winery, brewery, or distillery	-	S	S	S	-	Note 4
Food, beverages, and groceries	-	P	P	P	S	
Nursery, plant	P	P	P	P	P	Note 1
Outdoor vending	-	A	A	A	A	Part 10, Chapter 20.80
Outdoor vending, fresh fruits and vegetables	P	P	P	P	P	Part 10, Chapter 20.80
Pawn shop/broker	-	C	C	C	-	See Title 6
Retail art studio	-	P	P	P	-	Note 21; Section 20.80.1175
Retail bakery	-	P	P	P	-	Note 21
Retail sales, goods, and merchandise	-	P	P	P	-	Note 21

Seasonal sales	P	P	P	P	-	Part 14, Chapter 20.80
Agriculture						
Aquaculture, aquaponics, and hydroponics	S	S	S	S	S	
Certified farmers' market	S	S	S	S	S	Part 3.5, Chapter 20.80
Certified farmers' market, small	P	P	P	P	P	Part 3.5, Chapter 20.80
Neighborhood agriculture	P	P	P	P	P	Note 19; Title 7
Drive-Through Uses						
Drive-through uses in conjunction with any use	-	-	C	C	C	
Education and Training						
Child day care center located on an existing School Site or as an incident to a permitted on-site church/religious assembly use involving no building additions or changes to the site	P	P	P	P	P	Note 21
Day care center	S	S	S	S	S	
Instructional art studios	-	P	P	P	S	
Private instruction, personal enrichment	-	P	P	P	S	
School, elementary and secondary (public or private)	C	C	C	C	S	Note 16, Note 20, and Note 21

School, driving (class C & M license)	-	P	P	P	S	Note 2, Note 20, and Note 21
School, post secondary	-	P	P	P	S	Note 3, Note 20, and Note 21
School, trade and vocational	-	C	C	C	S	Note 16, Note 20, and Note 21
Entertainment and Recreation						
Arcade, amusement game	-	P	P	P	-	Note 21
Health club, gymnasium	-	P	P	P	S	
Performing arts rehearsal space	-	P	P	P	-	
Poolroom/billiards establishment	-	P	P	P	-	Note 21
Private club or lodge	C	C	C	C	-	
Recreation, commercial indoor	-	P	P	P	S	Note 21
Recreation, commercial outdoor	-	C	C	C	C	Note 21
Relocated cardroom	-	-	-	C	-	Section 20.80.1155
Stadium, 2,000 seats or fewer	-	C	C	C	C	Note 17
Stadium, more than 2,000 seats	-	CC	CC	CC	CC	Note 17 and Note 18
Theater, indoor	-	S	S	S	S	Note 21
Theater, outdoor	-	-	-	S	S	Note 21

Food Services						
Banquet facility	-	S	S	S	S	
Caterer	-	P	P	P	S	
Commercial kitchen	-	S	P	P	-	
Drinking establishments	-	C	C	C	-	Note 21
Drinking establishments interior to a full-service hotel or motel that includes 75 or more guest rooms	-	P	P	P	-	Section 20.80.475; Note 21
Public eating establishments	-	P	P	P	-	Note 21
Public eating establishment or retail establishment with incidental outdoor dining	-	P	P	P	-	Note 21; Section 20.40.520
Public eating establishment in conjunction with a winery, brewery, or distillery	-	P	P	P	-	
Taproom or tasting room with off-sale of alcohol	-	A	A	A	-	Part 5.75, Chapter 20.80
General Services						
Bail bond establishment - outside main jail area	-	P/S	P	P	-	Note 5; Part 1.5, Chapter 20.80
Bail bond establishment - within main jail area	-	P/S	P	P	-	Note 5 and Note 14; Part 1.5, Chapter 20.80
Bed and breakfast Inn	-	P	P	P	-	Note 21; Part 2, Chapter 20.80
Dry cleaner	-	P	P	P	-	Note 21

Hotel or motel	-	P	P	P	-	Note 21
Single room occupancy (SRO) hotel	-	C	C	C	-	Part 15, Chapter 20.80
Laundromat	-	P	P	P	-	Note 21
Maintenance and repair, small household appliances	-	P	P	P	-	Note 21
Messenger services	P	P	P	P	-	Note 2 and Note 21
Mortuary and funeral Services	P	P	P	P	-	Note 21
Personal services	-	P	P	P	-	Note 21; Section 20.200.880
Photo processing and developing	-	P	P	P	-	Note 21
Printing and publishing	-	P	P	P	-	Note 21
Social service agency	-	S	S	S	S	
Health and Veterinary Services						
Animal boarding, indoor	P/-	P	P	P	P/S	Note 8, Section 20.40.120
Animal grooming	P/-	P	P	P	P/S	Note 8 Section 20.40.120
Emergency ambulance service	C	C	C	C	C	
Hospital/in-patient facility	C	C	C	C	C	Note 21

Medical cannabis dispensary	-	R	R	R	-	Part 9.75, Chapter 20.80
Cannabis retail storefront	-	R	R	R	-	Part 9.75, Chapter 20.80
Medical cannabis collective dispensary site only	-	R	R	R	-	Part 9.75, Chapter 20.80
Office, medical	P	P	P	P	S	Note 21
Veterinary clinic	-	P	P	P	C	Note 16
Historic Reuse						
Historic landmark structure reuse	S	S	S	S	S	Part 8.5, Chapter 20.80
Offices and Financial Services						
Automatic teller machine	P	P	P	P	S	Section 20.80.200
Business support	-	P	P	P	-	Note 21
Financial services	P	P	P	P	-	Note 21
Office, general business	P	P	P	P	S	Note 21; Section 20.40.110
Payday lending establishment	-	R/-	R	R	-	Note 24 Part 12.5, Chapter 20.80 Section 20.200.875
Retail bank	P	P	P	P	-	Note 21
Public, Quasi-Public and Assembly Uses						
Cemetery	C	C	C	C	C	

Church/religious assembly	S	S	S	S	S	Note 16, Note 20, and Note 21
Construction/ corporation yard associated with public, quasi-public or assembly use or transportation or utility use	-	-	-	-	C	
Museums, libraries, parks, playgrounds, or community centers (publicly operated)	P	P	P	P	P	Note 21
Museums, libraries, parks, playgrounds, or community centers (privately operated)	C	C	C	C	S	Note 20 and Note 21
Recycling Uses						
Reverse vending machine	A	A	A	A	A	Part 13, Chapter 20.80
Small collection facility	A	A	A	A	A	Part 13, Chapter 20.80
Residential						
Emergency residential shelter	S	S	S	S	S	Section 20.80.500
Hotel supportive housing	C	C	C	C	C	Note 22; Part 22, Chapter 20.80
Live/work uses	-	S	S	S	-	Note 6; Section 20.80.740
Low barrier navigation center	-	P	P	P	P	Chapter 20.195

Mixed use residential/commercial	-	C/S	C	C GP	-	Note 6, 25 and 26
Permanent supportive housing	-	-	-	-	P	Note 27; Chapter 20.195
100% deed-restricted affordable housing	P	P	P	P	-	Note 28
Residential care facility for seven or more persons	C	C	C	C	C	
Residential service facility for seven or more persons	C	C	C	C	C	
Single room occupancy, living unit	-	C	C	C	-	Note 6; Part 15, Chapter 20.80
Transportation and Utilities						
Data center	-	-	-	C	-	Note 21
Commercial vehicle storage	S	-	-	S	S	
Common carrier depot	S	-	S	S	S	Note 21
Community television antenna systems	C	C	C	C	C	
Off-site, alternating use and alternative parking arrangements	S	S	S	S	S	Section 20.90.200
Parking establishment, off-street	C	-	C	C	-	
Short term parking lot for uses or events other than on-site	-	-	-	C	C	Note 7
Television, radio studios without antenna/dishes	-	-	-	C	C	

Utility facilities, excluding corporation yards, storage or repair yards and warehouses	C	C	C	C	C	
Utility facilities including corporation yards, storage or repair yards and warehouses	-	-	-	-	C	
Wireless communication antenna	C	C	C	C	C	Note 23; Sections 20.100.1300, 20.80.1915
Wireless communication antenna, slimline monopole	S	S	S	S	S	Note 23; Sections 20.80.1900, 20.80.1915
Wireless communication antenna, building mounted	P	P	P	P	P	Note 23; Sections 20.80.1910, 20.80.1915
Utilities, Electrical Power Generation						
Co-generation facility	S	S	S	S	S	
Fuel cells	P	P	P	P	P	
Private electrical power generation facility	C	C	C	C	C	Note 2
Solar photovoltaic system	P	P	P	P	P	Section 20.100.610 C.7.
Stand-by/backup facilities that do not exceed noise or air standards	A	A	A	P	A	
Stand-by/backup facilities that do exceed noise or air standards	C	C	C	C	C	
Temporary stand-by/backup	P	P	P	P	P	

Vehicle Related Uses						
Accessory installation, passenger vehicles and pick-up trucks	-	-	C	P	-	
Auto dealer, wholesale - no on-site storage	P	P	P	P	-	
Car wash, detailing	-	-	C	C	-	
Fuel service station or charge station, no incidental service or repair	-	C	C	P	C	Note 15
Fuel service station or charge station with incidental service and repair	-	-	C	P	C	Note 9 and Note 13
Glass sales, installation, and tinting	-	-	C	P	-	Note 13
Leasing (rental) passenger vehicles, pick-up trucks not exceeding twenty-five feet in length, and motorcycles	-	-	C	P	-	Note 2
Sale, brokerage, or lease, commercial vehicles	-	-	C	C	-	Note 13
Sale or brokerage, passenger vehicles, pick-up trucks not exceeding 25 feet in length, and motorcycles	-	-	S	P	-	Note 12 and Note 13
Sale, vehicle parts	-	-	P	P	-	Note 11
Tires, batteries, lube, oil change, smog check station, air conditioning servicing of passenger vehicles and pick-up trucks	-	-	C	P	-	Note 10 and Note 13

Notes applicable to all commercial districts:

1. In the CP district, landscaping materials, such as rock, mulch, and sand are limited to prepackaged sales.

2. Classroom use only, no driving courses or on site storage of vehicles permitted in the CP, CN, and CG Zoning Districts.

3. Includes public and private colleges and universities, as well as extension programs and business schools.

4. Alcohol, off-sales are limited to products manufactured onsite for wineries, breweries, or distilleries.

5. Permitted outside of Urban Village; Special Use Permit in Urban Villages.

6. Mixed use residential/ commercial development may be approved only on parcels designated on the land use/transportation diagram of the General Plan with a designation that allows residential use or through a General Plan or Urban Village Policy that allows mixed-use development on a non-residential parcel.

7. Use must be less than twenty-four hours.

8. Permitted only as incidental to neighborhood agriculture; otherwise prohibited in CO. In PQP the use is permitted only as incidental to neighborhood agriculture; otherwise a Special Use Permit is required

9. Incidental repair includes non-invasive engine service, maintenance, and repair, including but not limited to, air conditioning service, fuel system service, electrical service, coolant system service, tune-up, fluid exchanges, steering and suspension system service, brake system service, transmission adjustment and service, lube, oil change, smog check, diagnostics and vehicle inspections, stock catalytic converters and manifolds, as well as tires, batteries and accessories installation. Does not allow body repair, welding, vehicle restorations, other types of exhaust system repair, the removal of cylinder heads, engines, transmissions/transfer cases and differentials, or painting.

10. Includes non-invasive engine service, maintenance, and repair, including but not limited to, air conditioning service, carburetor and fuel injection system service, electrical service, radiator coolant system service, and tune-up, fluid exchanges, steering and suspension system service, brake system service, transmission adjustment and service, lube, oil change, and smog check, diagnostics and vehicle inspections, stock catalytic

converters and manifolds, as well as tires, batteries and accessories installation. Does not allow body repair, welding, vehicle restorations, other types of exhaust system repair, the removal of cylinder heads, engines, transmissions/transfer cases and differentials, or painting.

11. No outdoor sales areas or dismantling allowed.

12. In the CG district, incidental repair of vehicles requires a Special Use Permit. Incidental repair of vehicles is prohibited in all other commercial districts.

13. All vehicle-related repair, service, and accessory or other installation shall be conducted within a fully enclosed building.

14. Bail bond establishments shall not be located and are prohibited uses on the ground floors of structures located within the main jail area, as that area is defined in Section 20.80.070 of Chapter 20.80 of this Title. Bail bond establishments are allowed as shown on Table 20-90 on other, above-ground floors of structures. All bail bond establishments shall meet all distance requirements specified in Section 20.80.075 of Chapter 20.80 of this Title.

15. Charging stations that are incidental to a separate primary use that do not impact on-site or off-site vehicular circulation, and that serve patrons of the primary use on-site are permitted in all commercial zoning districts.

16. Public schools are subject to the regulations of this Title, subject to the provisions of California Government Code Section 53094 for classroom facilities.

17. Primary uses include sporting events, assembly venues, concerts, and entertainment events of similar character and intensity. Incidental support uses include offices, locker rooms, retail, public eating establishments, drinking establishments, outdoor vending facilities, and other commercial uses of similar character and intensity.

18. Use permit applications for stadiums that consist of more than 2,000 seats and that are in airport influence areas shall be referred to the Santa Clara Airport Land Use Commission prior to approval by the City.

19. Neighborhood agriculture in conformance with this Title is a permitted use that may operate on a site without a permanent building on that site.

20. The City Council is the decision-making body for Special Use Permit appeals for this use pursuant to Section 20.100.220 of this Title.

21. In the PQP public/quasi-public zoning district, the following uses may be allowed as a use supporting and incidental to a primary PQP use:

    a. Offices, retail, public eating establishments, and other commercial uses of similar character and intensity, with approval of a Special Use Permit; and

    b. Drinking establishments, off-sale of alcoholic beverages, arcade amusement games, poolroom/billiards establishments, wineries, breweries, distilleries, and data centers, with approval of a Conditional Use Permit.

22. Hotel supportive housing may be permitted only with a Conditional Use Permit pursuant to Part 22 of Chapter 20.80 and only until December 31, 2026.

23. Certain modifications of existing wireless facilities may be permitted with an Administrative Permit in accordance with Section 20.80.1915 of Chapter 20.80.

24. Restricted outside of Urban Villages; Prohibited in Urban Villages.

25. Conditional Use Permit required outside of Urban Villages; Special Use Permit in Urban Villages.

26. Permanent supportive housing is allowed as a residential component of mixed use residential/ commercial.

27. Permanent supportive housing is only allowed in the PQP district as 100% of the residential use.

28. 100% deed-restricted affordable housing is a permitted use for residential housing type, and commercial space requirements shall not apply; subject to conformance with General Plan policies and state law mandates. Refer to Chapter 20.195 for information regarding the ministerial approval process.

SECTION 4. Section 20.55.100 of Chapter 20.55 of Title 20 of the San José Municipal Code is amended to read as follows:

20.55.100 Development Standards

A. All development in the Urban Village and Mixed Use Zoning Districts shall conform to the development regulations set forth below in Table 20-136.

B. For MUN development standards see Table 20-137 in Section 20.55.104.

Table 20-136
Urban Village and Mixed Use Zoning Districts
Development Standards

Regulations		Zoning Districts				
		UVC	UV	MUC	UR	TR
Min. Lot Area		8,000 sq. ft.	6,000 sq. ft.	6,000 sq. ft.	6,000 sq. ft.	6,000 sq. ft.
100% Commercial FAR		Max. 8.0	Max. 10.0	0.25 - 4.5	1.0 - 4.0	2.0 - 12.0
Mixed use	FAR	N/A	Max. 10.0	0.5 - 4.5	Max. 4.0	Max. 12.0
	du/ac	N/A	Min. 55	Max. 50	Min. 30	Min. 50
100% Affordable Residential du/ac		N/A	55 - 250	Max. 50	30 - 95	50 - 250
Max. Building Height		Refer to Approved Urban Village Plan		85 ft.	135 ft.	270 ft.
		For additional regulations for building heights refer to Chapter 20.85 Specific Height Restrictions. For development located in areas with approved Urban Village Plans refer to the Urban Village Plan for height regulations.				

Additional regulations for Urban Villages	For development in Urban Villages with an approved plan, refer to the Urban Village Plan for additional information on development standards and requirements
	Setback Regulations
Front Setback	Maximum 10 ft.
Side Setback	Maximum 10 ft.
Rear Setback	Minimum 10 ft.
Public Open Space in Setback areas	No setback shall be required to the property line abutting public plazas, paseos, POPOS, and other public open spaces, which conform to the Citywide Design Standards and Guidelines for Building Placement and Form, Proportion, and Scale.
Exceptions to Setback Regulations	Refer to Section 20.55.101
	Additional Development Regulations
Ground-Floor Commercial Regulations for 100% Commercial or Mixed use	Refer to the Citywide Design Standards and Guidelines for additional standards and regulations regarding minimum frontage, height, depth, and other requirements for ground-floor commercial spaces.
Common and Private Open Space Regulations for 100% Residential and Mixed use	Refer to Section 20.55.102
Lighting	Refer to Section 20.55.103
Parking	For general parking regulations, refer to Chapter 20.90

	No unmounted camper or vehicle, other than those vehicles expressly specified and allowed under Title 17 of this Code, shall be kept, stored or parked for a period of time in excess of forty-eight consecutive hours in the front setback area of any lot or parcel containing a residential use. Such parking or storage is limited to paved surfaces.

SECTION 5. Section 20.55.201 of Chapter 20.55 of Title 20 of the San José Municipal Code is amended to read as follows:

20.55.201 General Use Regulations

A. Permanent structure required. No use shall be deemed to be a permitted use on a site in any UVC, UV, MUC, MUN, UR, or TR district unless it is being conducted as part of a business, residence, or mixed use development which maintains on that site a permanent, fully enclosed building erected pursuant to a valid building permit issued for that site, excepting only those uses specifically permitted, under this Part or this Title, to operate without a permanent building on site.

B. Late night use and activity.

1. No establishment other than office uses, in any, UVC, UV, MUC, MUN, UR, or TR Zoning District shall be open between the hours of 12:00 midnight and 6:00 a.m. except pursuant to and in compliance with a Special Use Permit as provided in Chapter 20.100.

2. No outdoor activity, including loading, sweeping, landscaping or maintenance shall occur within one-hundred fifty (150) feet of any residentially designated property between the hours of 12:00 midnight and

6:00 a.m. except pursuant to and in compliance with a Conditional Use Permit as provided in Chapter 20.100.

C. Incidental Uses.

1. Residential. In addition to the occupancy of a dwelling as a residence, the following incidental uses are permitted:

a. The rental of rooms in a One-Family Dwelling to up to three (3) guests; in Two-Family Dwelling to up to two (2) guests, by each Family; and in a Multiple Dwelling Unit to up to two (2) guests per unit, if such use is clearly incidental to the occupancy of the dwelling unit by said Family as its own residence, and such rental is for a period of time longer than thirty (30) days and there are no more than six (6) persons living in the dwelling.

b. Use of the dwelling, including a permitted Guesthouse, for Incidental Transient Occupancy in compliance with Part 2.5 of Chapter 20.80.

c. State-licensed Family Day Care Home.

d. The following non-commercial activities:

i. A garage sale consisting of the occupants' personal property;

ii. Sale of goods hand-produced by the occupants;

iii. Sales parties held for the purpose of selling goods to invited Guests. Such parties shall be held inside a permanent structure or in the rear yard of the dwelling unit.

iv. To qualify as a non-commercial activity:

I. No more than two (2) such sales are allowed in any calendar year;

II. No such sale can be conducted for more than four (4) consecutive days;

III. Such sales shall only be conducted between the hours of 9:00 a.m. and 9:00 p.m.

D. Accessory Dwelling Units (ADUs). ADUs are permitted and shall conform to Part 2.75 of Chapter 20.80.

E. Guesthouses. The following restrictions apply to guesthouses:

1. Meals and housekeeping services may be provided with the lodging, but only to resident guests.

2. All cooking facilities must be in a single, common kitchen; no rooms shall have any cooking facilities.

3. No services may be provided to non-residents.

4. All required state licenses must be maintained.

5. No more than three guest rooms may have separate external entryways.

F. Live/work units.

1. All live/work uses in the Urban Village and Mixed Use zoning districts shall be subject to all of the following criteria:

a. All work activities shall be limited to the permitted uses of the Urban Village and Mixed Use zoning districts, specified in Table 20-138, unless otherwise noted in this Chapter.

b. All work activities and storage shall take place in fully enclosed areas.

2. Prohibited uses:

a. Any use not permitted within the Urban Village and Mixed Use zoning districts, as specified in Table 20-138 or under Section 20.80.720 for home occupation uses.

b. Entertainment, drinking and public eating establishments.

c. The sale of food and/or beverages except for food or beverages prepared on-site as part of a Cottage Food Operation, in conformance with applicable public health regulations.

d. Veterinary services, including grooming and boarding, and the breeding or care of animals for hire or for sale.

e. Storage or recycling, except as incidental to and in support of a permitted use in the Urban Village and Mixed Use zoning districts.

f. Activities involving biological or chemical substances that require a controlled environment or may pose a health hazard.

g. Work activities that involve hazardous material or generate odors, vibration, glare, fumes, dust, electrical interference outside the dwelling or through vertical separation between living units, greater than those generated by routine household activities.

3. The living unit must be occupied by an owner, employee, or volunteer of the business associated with the live/work unit.

4. All live/work units must fully comply with any and all Uniform Building Code requirements applicable to the collocation of uses at the particular site.

G. Development adjacent to Historic Landmarks or Districts

1. Any project within a historic district shall conform to applicable guidelines adopted, and as amended by the City Council.

2. For purposes of this Section, "historic district" and "historic landmark" refer to any site, building, structure, or area that has received city, state or federal landmark status.

3. New structures exceeding one hundred fifty (150) feet and an FAR of 6:1 which are constructed within one hundred (100) feet of a City landmark or contributing structure in a designated landmark district shall be reviewed

by the Historic Landmarks Commission prior to consideration or approval of a Development Permit for new construction. The comments of the Historic Landmarks Commission shall be included in any Development Permit staff report subsequently presented to the Executive Director of the Redevelopment Agency, Director of Planning, Planning Commission or City Council.

H. Outdoor uses within one hundred fifty (150) feet of residential zoning district.

1. No use, which in whole or in part, consists of, includes, or involves any outdoor activity or sale or storage of goods, products, merchandise or food outdoors shall occur on any lands if any part of such lands or any part of the lot on which such buildings are located is situated within one hundred fifty (150) feet of residentially zoned property situated within or outside the City except with a Special Use Permit as provided for in Chapter 20.100, except for the following:

a. Seasonal sales in accordance with the provisions in Part 14, Chapter 20.80.

b. Service windows for pedestrians or automatic teller machines for pedestrians, both of which are associated with financial institutions.

c. Outdoor retail displays located in the front setback that are associated with a commercial use on the property.

d. Plant nursery sales.

e. Outdoor dining incidental to a public eating establishment or a retail establishment that conforms to all of the following criteria:

i. The outdoor dining area is located within one hundred (100) feet of the main street or is completely separated from any property located in a residential zoning district by a minimum distance of fifty (50) feet; and

ii. The outdoor dining area does not include any equipment to produce any amplified sound; and

iii. The outdoor dining area does not operate between the hours of 12:00 midnight and 6:00 a.m.; and

iv. The outdoor dining area is operated in a manner that does not create a private or public nuisance.

f. Outdoor vending of whole, uncut, fresh fruits and vegetables in conformance with Part 10, Chapter 20.80.

g. Small certified farmers' markets that are in conformance with Part 3.5, Chapter 20.80.

I. Screening of non-residential uses adjacent to residentially zoned properties.

1. Any non-residential use conducted on any property shall be effectively screened at the property line from any abutting property in a residential district. The screening required hereby shall be a masonry wall or a solid wooden fence five feet in height, except that any portion thereof situated in the required setback area from abutting public streets shall be not more than four (4) feet; and in the event such use included any outdoor activity, such screening shall also include such trees or plants as the Director

deems reasonable necessary to effectively screen such use from the adjoining residence district. Such screening shall at all times be maintained in good condition and be kept free at all times of signs. In addition, where a use involving outdoor activity is on a lot or parcel adjoining a residential district, such lot or parcel shall be landscaped in a manner approved by the Director.

J. Wireless Communication.

1. Wireless communications antennae are allowed in Urban Village and Mixed Use districts pursuant to Table 20-50 only if all of the following criteria are met:

a. The proposed antenna is located upon a parcel with a nonresidential use; and

b. The proposed antenna is located either:

i. More than thirty-five (35) feet away from the nearest residential use; or at least one (1) foot away from the nearest residential use for every foot of monopole height, whichever distance is greater; or

ii. More than twenty (20) feet away from the nearest residential use if the proposed antenna is mounted on an existing utility structure within a utility corridor.

2. Wireless communications antennae of any type located on a property zoned for Urban Village or Mixed Use, with a residential use shall require a Conditional Use Permit pursuant to the provisions of Chapter 20.100 of

this Title, except for certain modifications pursuant to Section 20.80.1915 of Chapter 20.80.

K. Vehicular related uses in Urban Village and Mixed Use Zoning Districts.

1. Continued operation of existing use allowed with only ten percent (10%) expansion of existing structures, unless specified through an Urban Village Plan that allows greater intensity of the use. Uses allowed by the Stevens Creek and 24th and William Urban Village Plans are not subject to the maximum ten percent (10%) expansion of use.

2. New vehicle related uses allowed only pursuant to the provisions of the Stevens Creek and 24th and William Urban Village Plans, as amended.

3. Sale, leasing, or brokerage of passenger vehicles, pick-up trucks not exceeding twenty-five (25) feet in length, and motorcycles are allowed to include the following incidental uses as part of their operation:

   a. Accessory installation, passenger vehicles and pick-up trucks

   b. Car wash, detailing, not open to the public

   c. Fuel service station or charge station, including incidental service or repair, not open to the public

   d. Glass sales, installation, and tinting

   e. Sale, vehicle parts, with onsite installation

f. Tires, batteries, lube, oil change, smog check station, air conditioning servicing of passenger vehicles and pick-up trucks

SECTION 6. Section 20.55.203 of Chapter 20.55 of Title 20 of the San José Municipal Code is amended to read as follows:

20.55.203 Urban Village and Mixed Use Zoning District Use Regulations

Table 20-138
Urban Village and Mixed Use Zoning Districts Use Regulations

Use	Zoning District						Notes & Sections
	UVC	UV	MUC	MUN	UR	TR	
Residential							
One-family dwelling	-	-	-	P	P	P	Note 6; Note 25
Two-family dwelling	-	-	-	P	P	P	Note 6; Note 25
Accessory dwelling unit	-	P	P	P	P	P	Part 2.75, Chapter 20.80
Mixed use development	-	P	P	P	P	P	Note 20; Note 25 Chapter 20.195
Multiple dwelling	-	P	P	P	P	P	Note 20; Note 25 Chapter 20.195
Co-living community	-	S	C	C	S	S	Part 3.73, Chapter 20.80
Guesthouse	-	S	-	S	S	S	
Emergency residential shelter	-	S	S	S	S	S	Section 20.80.500
Home Occupation	-	P	P	P	P	P	Part 9, Chapter 20.80

Hotel supportive housing	C	-	C	-	-	-	Note 17; Part 22, Chapter 20.80
Live/work uses	-	S	S	S	S	S	Section 20.80.740
Low barrier navigation center	-	P	P	P	P	P	Chapter 20.195
Permanent supportive housing	-	P	P	P	P	P	Note 20; Chapter 20.195
100% deed-restricted affordable housing	-	P	P	P	P	P	Note 26
Residential accessory structures or buildings	-	P	P	P	P	P	Part 5, Chapter 20.30
Residential care facility for six or fewer persons	-	P	P	P	P	P	
Residential care facility for seven or more persons	-	C	C	C	C	C	
Residential service facility for six or fewer persons	-	P	P	P	P	P	
Residential service facility for seven or more persons	-	C	C	C	C	C	
Single room occupancy, living unit	-	-	C	-	-	-	Note 25; Part 15, Chapter 20.80

General Retail							
Alcohol, off-sale - beer and/or wine only	C	C	C	C	C	C	Section 20.80.900
Alcohol, off-sale - full range of alcoholic beverages	C	C	C	C	C	C	Section 20.80.900
Alcohol, off-sale - as incidental to a winery, brewery, or distillery	A	A	A	A	A	A	Note 1; Part 5.75, Chapter 20.80
Food, beverages, and groceries	P	P	P	P	P	P	
Nursery, plant	P	P	P	P	P	P	Note 2
Outdoor vending	A	A	A	A	A	A	Part 10, Chapter 20.80
Outdoor vending, fresh fruits and vegetables	P	P	P	P	P	P	Part 10, Chapter 20.80
Pawnshop/broker	C	-	C	-	-	-	See Title 6
Retail art studio	P	P	P	P	P	P	Section 20.80.1175
Retail bakery	P	P	P	P	P	P	
Retail sales, goods, and merchandise	P	P	P	P	P	P	
Seasonal sales	P	P	P	P	P	P	Part 14, Chapter 20.80

Agriculture & Open Space							
Aquaculture, aquaponics, and hydroponics	S	S	S	S	S	S	
Certified farmers' market	S	S	S	S	S	S	Part 3.5, Chapter 20.80
Certified farmers' market, small	P	P	P	P	P	P	Part 3.5, Chapter 20.80
Community gardens	P	P	P	P	P	P	
Neighborhood agriculture	P	P	P	P	P	P	Note 16; Title 7
Education and Training							
Child day care center located on an existing School Site or as an incident to a permitted on-site church/religious assembly use involving no building additions or changes to the site	P	P	P	P	P	P	Note 5
Day care center	S	S	S	S	S	S	Note 5
Instructional art studios	P	P	P	P	P	P	
Private instruction, personal enrichment	P	P	P	P	P	P	
School, elementary and secondary (public or private)	C	C	C	C	C	C	Note 13

School, driving (class C & M license)	P	P	P	P	P	P	Note 3
School, post secondary	P	P	P	P	P	P	
School, trade and vocational	P/S	P/S	P/S	P/S	P/S	P/S	Note 4 and Note 13
Entertainment and Recreation							
Arcade, amusement game	P	P	P	P	P	P	
Health club, gymnasium	P	P	P	P	P	P	
Performing arts rehearsal space	P	P	P	P	P	P	
Poolroom/billiards establishment	P	P	P	P	P	P	
Private club or lodge	S	S	S	S	S	S	
Recreation, commercial indoor	P	P	P	P	P	P	
Recreation, commercial outdoor	-	S	-	-	-	-	
Stadium, 2,000 seats or fewer	C	C	-	-	-	-	
Stadium, more than 2,000 seats	CC	CC	-	-	-	-	Note 14 and Note 15
Theater, indoor	S	S	S	-	S	S	
Theater, outdoor	S	S	S	-	S	S	

Food Services							
Banquet facility	S	S	S	S	S	S	
Caterer	P	P	P	P	P	P	
Commercial kitchen	P	P	P	-	S	S	
Drinking establishments	S	S	S	-	S	S	
Drinking establishments interior to a full-service hotel or motel that includes 75 or more guest rooms	P	P	P	P	P	P	Section 20.80.475
Public eating establishments	P	P	P	P	P	P	
Public eating establishment or retail establishment with incidental outdoor dining	P	P	P	P	P	P	Section 20.40.520
Public eating establishment in conjunction with a winery, brewery, or distillery	P	P	P	P	P	P	Part 5.75, Chapter 20.80
Taproom or tasting room in conjunction with a winery, brewery, or distillery	A	A	A	A	A	A	Part 5.75, Chapter 20.80
Taproom or tasting room with off-sale of alcohol	A	A	A	A	A	A	Part 5.75, Chapter 20.80

General Services							
Bail Bonds Establishment	S	S	S	-	S	S	Note 11; Part 1.5, Chapter 20.80
Bed and breakfast inn	P	P	P	P	P	P	Part 2, Chapter 20.80
Dry cleaner	P	P	P	P	P	P	
Hotel or motel	P	P	P	P	P	P	
Single room occupancy (SRO) hotel	C	C	C	C	C	C	Part 15, Chapter 20.80
Laundromat	P	P	P	P	P	P	
Maintenance and repair, small household appliances	P	P	P	P	P	P	
Messenger services	P	P	P	P	P	P	
Mortuary and funeral services	P	P	P	P	P	P	
Personal services	P	P	P	P	P	P	Section 20.200.880
Printing and publishing	P	P	P	P	P	P	
Social service agency	S	S	S	S	S	S	
Health and Veterinary Services							
Animal boarding, indoor	P	P	P	P	P	P	Note 7
Animal grooming	P	P	P	P	P	P	Note 7

Cannabis retail storefront	R	R	R	-	R	R	Part 9.75, Chapter 20.80
Emergency ambulance service	C	C	C	-	C	C	
Hospital/in-patient facility	C	C	C	-	C	C	
Medical cannabis collective dispensary site only	R	R	R	-	R	R	Part 9.75, Chapter 20.80
Medical cannabis dispensary	R	R	R	-	R	R	Part 9.75, Chapter 20.80
Office, medical	P	P	P	P	P	P	
Veterinary clinic	P	P	P	P	P	P	
Historic Reuse							
Historic landmark structure reuse	S	S	S	S	S	S	Part 8.5, Chapter 20.80
Industry and Manufacturing							
Laboratory, processing	P	P	P	-	-	-	
Manufacturing and assembly, light	P	P	P	-	-	-	Note 22
Office, research and development	P	P	P	-	S	S	Note 21
Offices and Financial Services							
Automatic teller machine	P	P	P	P	P	P	Section 20.80.200
Business support	P	P	P	P	P	P	
Office, general business	P	P	P	P	P	P	

Retail bank / Financial services	P	P	P	P	P	P	
Public, Quasi-Public and Assembly Uses							
Cemetery	C	C	C	C	C	C	
Church/religious assembly	S	S	S	S	S	S	
Museums, libraries, parks, playgrounds, or community centers (publicly operated)	P	P	P	P	P	P	
Museums, libraries, parks, playgrounds, or community centers (privately operated)	S	S	S	S	S	S	
Recycling Uses							
Reverse vending machine	A	A	A	A	A	A	Part 13, Chapter 20.80
Small collection facility	A	A	A	A	A	A	Part 13, Chapter 20.80
Transportation and Utilities							
Community television antenna systems	C	C	C	C	C	C	
Off-site, alternating use and alternative parking arrangements	S	S	S	-	S	S	Section 20.90.200
Parking establishment, off-street	S	-	S	-	-	-	Note 23

Television, radio studios without antenna/dishes	C	C	C	-	-	-	
Utility facilities, excluding corporation yards, storage or repair yards and warehouses	C	C	-	-	-	-	
Utility facilities including corporation yards, storage or repair yards and warehouses	-	-	-	-	-	-	
Wireless communication antenna	C	C	C	C	C	C	Note 18; Sections 20.100.1300, 20.80.1915
Wireless communication antenna, slimline monopole	S	S	S	S	S	S	Note 19; Sections 20.80.1900, 20.80.1915
Wireless communication antenna, building mounted	P	P	P	P	P	P	Note 19; Sections 20.80.1910, 20.80.1915
Utilities, Electrical Power Generation							
Co-generation facility	S	S	S	S	S	S	
Fuel cells	P	P	P	P	P	P	
Private electrical power generation facility	C	C	C	C	C	C	

Solar photovoltaic system	P	P	P	P	P	P	Section 20.100.610 C.7.
Stand-by/backup facilities that do not exceed noise or air standards	A	A	A	A	A	A	
Stand-by/backup facilities that do exceed noise or air standards	C	C	C	-	-	-	
Temporary stand-by/backup	P	P	P	P	P	P	
Vehicle Related Uses							
Sale or leasing of vehicles, showroom only	P	P	P	-	-	-	Note 24
Sale, vehicle parts	S	S	S	-	S	S	Note 9
For all other vehicle related uses refer to the General Use Regulations as described in Section 20.55.201 (K)							

Notes:

1. Alcohol, off-sales are limited to products manufactured on-site for wineries, breweries, or distilleries.

2. Landscaping materials, such as rock, mulch, and sand are limited to prepackaged sales.

3. Classroom use only, no driving courses or on-site storage of vehicles permitted in UVC, UV, MUC, MUN, UR or TR Zoning Districts.

4. Indoor uses related to trade or vocational schools are Permitted, any outdoor uses will require a Special Use Permit.

5. If the Daycare use exceeds the noise standards, as set forth in Chapter 20.40 in Section 20.40.600, it will require a Special Use Permit.

6. One-family dwellings or two-family dwellings are allowed as part of a larger development which meets the minimum density requirement in the UR and TR zoning districts.

7. Except as an incidental use to neighborhood agriculture, all uses involving any type of care for animals, including but not limited to grooming, boarding, medical care, must be conducted wholly inside a building.

8. Incidental repair includes non-invasive engine service, maintenance, and repair, including but not limited to, air conditioning service, fuel system service, electrical service, coolant system service, tune-up, fluid exchanges, steering and suspension system service, brake system service, transmission adjustment and service, lube, oil change, smog check, diagnostics and vehicle inspections, stock catalytic converters and manifolds, as well as tires, batteries and accessories installation. Does not allow body repair, welding, vehicle restorations, other types of exhaust system repair, the removal of cylinder heads, engines, transmissions/transfer cases and differentials, or painting.

9. No outdoor sales areas or dismantling allowed.

10. All vehicle-related repair, service, and accessory or other installation shall be conducted within a fully enclosed building.

11. Bail bond establishments shall not be located and are prohibited uses on the ground floors of structures located within the main jail area, as that area is defined in Section 20.80.070 of Chapter 20.80 of this Title. Bail bond establishments are allowed as shown on Table 20-138 on other, above-ground floors of structures. All bail bond establishments shall meet all distance requirements specified in Section 20.80.075 of Chapter 20.80 of this Title.

12. Charging stations that are incidental to a separate primary use that do not impact on-site or off-site vehicular circulation, and that serve patrons of the primary use on-site are permitted in all commercial zoning districts.

13. Public schools are subject to the regulations of this Title, subject to the provisions of California Government Code Section 53094 for classroom facilities.

14. Primary uses include sporting events, assembly venues, concerts, and entertainment events of similar character and intensity. Incidental support uses include offices, locker rooms, retail, public eating establishments, drinking establishments, outdoor vending facilities, and other commercial uses of similar character and intensity.

15. Use permit applications for stadiums that consist of more than 2,000 seats and that are in airport influence areas shall be referred to the Santa Clara Airport Land Use Commission prior to approval by the City.

16. Neighborhood agriculture in conformance with this Title is a permitted use that may operate on a site without a permanent building on that site.

17. Hotel supportive housing may be permitted only with a Conditional Use Permit pursuant to Part 22 of Chapter 20.80 and only until December 31, 2026.

18. Certain modifications of existing wireless facilities may be permitted with an Administrative Permit in accordance with Section 20.80.1915 of Chapter 20.80.

19. Conditional Use Permit required outside of Urban Villages; Special Use Permit in Urban Villages.

20. Permanent supportive housing is a permitted use as mixed use or residential-only development. For information regarding the ministerial approval process, refer to Chapter 20.195 for more information.

21. Research and Development is allowed through a Special Use Permit in TR and UR if the use on site does not involve activity that would create noxious sounds, smells, or vibrations.

22. For the purposes of Chapter 20.55, Food and Beverage manufacturing is considered to be permitted under the Manufacturing and Assembly, light use, if it meets all of the following criteria:

    a. The use must include a retail space which is accessible from and adjacent to the street and open to the public during regular business hours.

    b. Odors produced on-site shall not have a material negative effect on other businesses or properties in the area.

23. Surface parking which does not serve a use contained on the same site or under the same Development Permit is not permitted. Standalone parking structures are allowed under the following conditions:

    a. Parking structures shall comply with the Citywide Design Standards and Guidelines.

b. In addition, the parking facility must meet one of the following criteria:

i. The parking facility shall be designed as a structured aboveground parking facility with ground floor commercial spaces, which are located along public rights-of-way or public open spaces, and which comply with Citywide Design Standards and Guidelines for ground floor commercial spaces.

ii. The parking facility shall be designed as an underground parking facility with a POPOS at grade level, which is open to the public 24 hours a day, and which complies with the Citywide Design Standards and Guidelines.

24. In UVC and MUC, sale and leasing of vehicles is permitted in the form of an interior showroom only with no on-site storage of vehicles other than display models in the showroom.

25. May be used as Transitional Housing.

26. 100% deed-restricted affordable housing is a permitted use for residential housing type that meet minimum density requirement in the UR and TR zoning districts, and commercial space requirements shall not apply; subject to conformance with General Plan policies and state law mandates. Refer to Chapter 20.195 for information regarding the ministerial approval process.

SECTION 7. Section 20.70.100 of Chapter 20.70 of Title 20 of the San José Municipal Code is amended to read as follows:

20.70.100 Allowed Uses and Permit Requirements

A. "Permitted" land uses are indicated by a "P" on Table 20-140.

B. "Permitted" uses which may be approved only on parcels within the downtown zoning districts which are designated on the land use/transportation diagram of the General Plan, as amended, with a land use designation that allows some residential use, are indicated by a "PGP " on Table 20-140. These uses may be

allowed on such downtown zoning district parcels, but only in compliance with the General Plan land use restrictions related to residential use.

C. "Conditional" uses requiring planning commission approval as the initial decision-making body are indicated by a "C" on Table 20-140. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Conditional Use Permit approved by the Planning Commission, or City Council on appeal, as set forth in Chapter 20.100.

D. "Conditional" uses which may be approved only on parcels within the downtown zoning districts which are designated on the land use/transportation diagram of the General Plan, as amended, with a land use designation that allows some residential use, are indicated by a "CGP" on Table 20-140. These uses may be allowed on such downtown zoning district parcels, but only upon issuance of and in compliance with a Conditional Use Permit as set forth in Chapter 20.100; and in compliance with the General Plan land use restrictions related to residential use.

E. "Special" uses are indicated by an "S" on Table 20-140. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Special Use Permit as set forth in Chapter 20.100.

F. "Special" uses which may be approved only on parcels within the downtown zoning districts which are designated on the land use/transportation diagram of the General Plan, as amended, with a land use designation that allows some residential use, are indicated by an "SGP" on Table 20-140. These uses may be allowed on such downtown zoning district parcels, but only upon issuance of and in compliance with a Special Use Permit as set forth in Chapter 20.100; and in compliance with the General Plan land use restrictions related to residential use.

G. "Administrative" uses are indicated by an "A" on Table 20-140. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with an Administrative Permit as set forth in Chapter 20.100.

H. "Restricted" land uses are indicated by an "R" on Table 20-140. These uses may occur in such designated districts, as an independent use, but only upon issuance of and in full compliance with a valid and effective zoning code verification certificate as set forth in Chapter 20.100.

I. Land uses not permitted are indicated by a "-" on Table 20-140. Land uses not listed on Table 20-140 are not permitted.

J. The column of Table 20-140, under the heading "Additional Use Regulations for the Ground Floor Active Use Area Overlay", identifies further regulations on the uses of ground-floor building space within a portion of the DC zoning district. The portion of the DC downtown primary commercial district included in the Active Use Area Overlay is described in Section 20.70.520.

K. When the right column of Table 20-140 includes a reference to a section number or a footnote, the regulations cited in the section number or footnote apply to the use. In addition, all uses are subject to any other applicable provision of this Title 20 and any other title of the San José Municipal Code.

Table 20-140
Downtown Zoning Districts Use Regulations

Use	Zoning District		Applicable Notes & Regulations	
	DC	DC-NT1	Additional Use Regulations for the AUA Overlay	Applicable to All Downtown Districts
Offices and Financial Services				
Automatic teller machine	P	P	P	Note a; Section 20.80.200
Business support use	P	P	P	
Financial services	P	P	P	Note b
Retail bank	P	P	P	Note b
Offices, business and administrative	P	P	S	Section 20.70.110
Payday lending establishment	R	R	-	Part 12.5, Chapter 20.80; Section 20.200.875
Research and development	P	P	-	
General Retail				
Alcohol, off-sale—beer and/or wine only	C	C	C	Section 20.80.900
Alcohol, off-sale—full range of alcoholic beverages	C	C	C	Section 20.80.900
Alcohol, off-sale—as incidental to a winery, brewery, or distillery	A	A	A	Note 11; Part 5.75, Chapter 20.80

Food, beverages, and groceries	P	P	P	
Outdoor vending	A	A	A	Note b; Part 10, Chapter 20.80
Outdoor vending—fresh fruits and vegetables	P	P	P	Note b; Part 10, Chapter 20.80
Pawn shop or pawn broker, incidental to a retail jewelry store	C	C	C	Note b; Chapter 6.52
Retail bakery	P	P	P	
Retail art studio	P	P	P	
Retail sales, goods, and merchandise	P	P	P	Note c
Seasonal sales	P	P	P	Part 14, Chapter 20.80
Agriculture				
Certified farmers' market	S	S	S	Part 3.5, Chapter 20.80
Certified farmers' market, small	P	P	P	Part 3.5, Chapter 20.80
Neighborhood agriculture	P	P	P	
Education and Training				
Day care center	P	P	P	Note b
Instructional art studios	P	P	P	
Private instruction, personal enrichment	P	P	P	Note b

School, elementary—grades K-8 (public or private -)	C	C	C	Note b
School, secondary—grades 9-12 (public or private)	C	C	C	Note b
School, post-secondary	P	P	-	
School, trade and vocational	P	P	P	Note b
Entertainment and Recreation Related				
Arcade, amusement game	P	-	P	Note b
Health club, gymnasium	P	P	P	
Lighting display	A/S	A/S	A/S	Section 20.70.150
Theater, indoor	P	P	P	
Poolroom/billiards establishment	P	-	P	
Private club or lodge	P	P	-	
Recreation commercial/indoor	P	P	P	
Food Services				
Banquet—facility	P	P	P	
Caterer	P	P	P	Note b
Drinking establishments	S	C	S	

Drinking establishments with an approved maximum occupancy load of over 250 persons and that operate between 12:00 midnight and 6:00 a.m.	CC	-	CC	Note 5
Drinking establishments interior to a full-service hotel or motel with 75 or more guest rooms	P	P	-	Section 20.80.475
Public eating establishments	P	P	P	Note 7
Public eating establishment in conjunction with a winery, brewery, or distillery	P	P	P	
Taproom or tasting room in conjunction with a winery, brewery, or distillery	A	S	A	Part 5.75, Chapter 20.80
Taproom or tasting room with off-sale of alcohol	A	A	A	Part 5.75, Chapter 20.80
General Services				
Bed and breakfast inn	P	P	P	Note b; Part 2, Chapter 20.80
Hotel or motel	P	P	P	
Laundromat	P	P	P	Note b
Maintenance and repair of small household appliances	P	P	P	Note b
Personal services	P	P	P	Note d

Printing and publishing	P	P	P	Note b and Note f
Health and Veterinary Services				
Animal grooming	P	P	P	Note b
Animal boarding, indoor	P	P	P	Note b
Cannabis retail storefront	R	R	R	Part 9.75, Chapter 20.80
Emergency ambulance service	C	-	-	
Hospital/in-patient facility	C	-	-	
Medical cannabis dispensary	R	R	R	Part 9.75, Chapter 20.80
Office, medical	P	P	P	Note b
Veterinarian	P	P	P	Note b
Historic Reuse				
Historic landmark structure reuse	S	S	S	Part 8.5, Chapter 20.80
Public, Quasi-Public and Assembly Uses				
Auditorium	C	-	C	
Church/religious assembly	P	P	-	
Information center	P	P	P	
Museums and libraries	P	-	P	
Parks, playgrounds, or community centers	P	P	S	

Recycling Uses				
Reverse vending machine	S	S	-	Part 13, Chapter 20.80
Small collection facility	S	S	-	Part 13, Chapter 20.80
Residential GP				
Residential shelter	CGP	-	-	Note e
Live/work uses	PGP	SGP		Note e; Section 20.70.120
Low barrier navigation center	PGP	PGP	-	Chapter 20.195
Permanent supportive housing	PGP	PGP	-	Chapter 20.195
Residential, multiple dwelling	PGP	PGP	-	Note 12, Note 13, and Note e
Co-living community	S	S	-	Note e; Part 3.75, Chapter 20.80
Residential care facility for seven or more persons	CGP	CGP	-	Note e
Residential services facility, for seven or more persons	CGP	CGP	-	Note e
Hotel supportive housing	CGP	CGP	-	Note 9 and Note e; Part 22 of Chapter 20.80

Single room occupancy (SRO) living unit facility	SGP	SGP	-	Note 12 and Note e; Part 15, Chapter 20.80
Single room occupancy (SRO) residential hotel	S	S	-	Note 12 and Note e; Part 15, Chapter 20.80
Residential Accessory Uses GP				
Accessory buildings and accessory structures	PGP	PGP	-	Note 1
Transportation and Communication				
Community television antenna systems	C	-	-	
Off-site and alternating use parking arrangements	P	P	P	Section 20.90.200
Off-street parking establishment	P	P	-	
Short term parking lot for uses or events other than on-site	S	S	-	
Radio and television studios	P	-	-	
Wireless communications antenna	S	-	-	Note 8; Sections 20.80.1900, 20.80.1915
Wireless communications antenna, building mounted	P	-	-	Note 8; Sections 20.80.1900, 20.80.1915

Utilities, Power Generation				
Private electrical power generation facility	C	C	-	
Solar photovoltaic power system	P	P	-	Section 20.100.610 C.7.
Stand-by/backup facilities that do not exceed noise or air standards	A	A	-	
Temporary stand-by/backup generators	P	P	-	
Vehicle Related Uses				
Car wash, detailing	P	-	-	
Fuel service station or charge station, no incidental service or repair	P	-	-	Note 6
Fuel service station or charge station, with incidental service and repair	P	-	-	Note 2
Sale and lease, vehicles and equipment (less than one ton)	P	-	-	Note 3
Tires, batteries, accessories, lube, oil change, smog check station, air conditioning	P	-	-	Note 4
Sale, vehicle parts, new	P	-	-	

Notes applicable to the Downtown Primary Commercial (DC) Zoning District, including the Active Use Area Overlay:

1. No Lot may be used solely for an Accessory Structure or Accessory Building.

2. Incidental repair includes air conditioning service, carburetor and fuel injection service, electrical service, radiator service, and tune-up, lube, oil change, and smog check, as well as tires, batteries, and accessories installation. Does not allow body repair or painting.

3. All activity must be conducted indoors.

4. Non-engine and exhaust-related service and repair allowed as incidental use.

5. Maximum occupancy load shall be that maximum occupancy load determined by the City fire marshal.

6. Pedestal Charge Stations that are incidental to a separate primary use, that do not impact on-site or off-site vehicular circulation, and that serve patrons of the primary use on-site are permitted in all Downtown Zoning Districts.

7. Includes on-site outdoor dining area(s).

8. Certain modifications of existing Wireless Facilities may be Permitted with an Administrative Permit in accordance with Section 20.80.1915 of Chapter 20.80.

9. Hotel Supportive Housing may be Permitted only with a Conditional Use Permit pursuant to Part 22 of Chapter 20.80 and only until December 31, 2026.

10. Repealed

11. Off-sale limited to items produced on-site otherwise a Conditional Use Permit is required.

12. Transitional Housing may be allowed as any residential housing type using the permit process for such housing type.

13. 100% deed-restricted affordable housing is a permitted use for residential housing type, and commercial space requirements shall not apply; subject to conformance with General Plan policies and state law mandates. Refer

to Chapter 20.195 for information regarding the ministerial approval process.

Notes applicable to the Active Use Area Overlay only:

a. Automatic Teller Machines must be a secondary use and must be architecturally integrated into the building on which they are placed. Automatic Teller Machines may not be standalone structures. Use may not be an ATM vestibule lobby.

b. Not permitted in corner tenant spaces. Corner tenant spaces are defined as storefronts that extend up to or beyond 30 feet along the street in either direction from the intersection.

c. Second-hand stores not dealing primarily in antiques, artworks, or vintage clothing require a Special Use Permit.

d. Excludes check-cashing services and bail bond services.

e. A residential pedestrian entry portal not exceeding 25 feet in length is permitted in the Ground Floor Active Use Area.

f. Only if dedicated primarily to on-site retail customer copy services, otherwise not Permitted.

SECTION 8. Section 20.75.200 of Chapter 20.75 of Title 20 of the San José Municipal Code is amended to read as follows:

20.75.200 Allowed Uses and Permit Requirements

A. "Permitted" land uses are indicated by a "P" on Table 20-156.

B. "Conditional" uses are indicated by a "C" on Table 20-156. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Conditional Use Permit as set forth in Chapter 20.100.

C. "Special" uses are indicated by a "S" on Table 20-156. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Special Use Permit as set forth in Chapter 20.100.

D. "Administrative" uses are indicated by an "A" on Table 20-156. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with an Administrative Permit as set forth in Chapter 20.100.

E. Land uses not permitted are indicated by a "-" on Table 20-156. Land uses not listed on Table 20-156 are not permitted.

F. When the right column of Table 20-156 includes a reference to a section number or a footnote, the regulations cited in the section number or footnote applies to the use. In addition, all uses are subject to any other applicable provision of this Title 20 and any other title of the San José Municipal Code.

G. "Restricted" land uses are indicated by an "R" on Table 20-156. These uses may occur in such designated districts, as an independent use, but only upon issuance of and in full compliance with a valid and effective zoning code verification certificate as set forth in Chapter 20.100.

Table 20-156
Pedestrian Oriented Districts
Land Use Regulations

Use	Main Street Zoning Districts				Applicable Sections & Notes
	MS-G			MS-C	
	Ground Floor Commercial Frontage	Residential Street Frontage	All Other		
General Retail					
Retail sales, goods and merchandise	P	-	P	P	
Off-sale Alcoholic Beverages—beer and/or wine only	C	-	C	C	Section 20.80.900
Off-sale Alcoholic Beverages—full range of Alcoholic Beverages	C	-	C	C	Section 20.80.900
Bakery, retail	P	-	P	P	
Certified Farmers' Market	S	-	S	S	Part 3.5, Chapter 20.80
Certified Farmers' Market—small	P	-	P	P	Part 3.5, Chapter 20.80
Food, beverage, groceries	P	-	P	P	
Neighborhood Agriculture	-	P	-	-	Part 9, Chapter 20.80
Nursery, Plant	-	-	P	P	Note 1

Outdoor Vending	A	-	A	A	Part 10, Chapter 20.80
Outdoor Vending—fresh fruits and vegetables	P	-	P	P	Part 10, Chapter 20.80
Pawn shop/broker	C	-	C	C	See Title 6
Seasonal sales	P	-	P	P	Part 14, Chapter 20.80
Art Studio, Retail	P	-	P	P	Part 13.7, Chapter 20.80
Education and Training					
Child Day Care Center located on an existing School Site or as an incident to an on-site church/religious assembly use involving no Building additions or changes to the site	-	-	P	P	
Day care center	S	-	S	S	
Art Studio, Instructional	P	-	P	P	
Art Studio, Instructional, with live models	C	-	C	C	
Private Instruction, personal enrichment	P	-	P	P	
School-elementary and secondary (public)	P	-	P	P	

School-elementary and secondary (private)	C	-	C	C	
School, driving (class C & M license)	P	-	P	P	Note 2
School, Post-Secondary	P	-	P	P	Note 3
School, Trade and Vocational	C	-	C	C	
Entertainment and Recreation Related					
Amusement Game Arcade	C	-	C	C	
Dancehall	C	-	C	C	
Poolroom/Billiard-Room	C	-	C	C	
Private club or lodge	C	-	C	C	
Recreation, Commercial/Indoor	P	-	P	P	
Recreation, Commercial/Outdoor	-	-	C	C	
Relocated Cardroom	-	-	-	-	
Theatre, indoor	C	-	C	C	
Theatre, outdoor	-	-	C	C	
Assembly	C	-	C	C	
Food Services					
Banquet—Facility	C	-	C	C	
Caterer	P	-	P	P	Note 4
Drinking Establishments	C	-	C	C	

Drinking Establishment interior to a full-service Hotel/Motel with 75 or more guest rooms	P	-	P	P	Section 20.80.475
Public Eating Establishments	P	-	P	P	
Outdoor dining, incidental to a Public Eating Establishment or a retail establishment	P	-	P	P	Section 20.75.320
Wineries, breweries	C	-	C	C	
Health and Veterinary Services					
Animal boarding, indoor	-	-	P	P	Note 5
Animal grooming	P	-	P	P	Note 5
Emergency ambulance service	-	-	C	C	
Hospital/in-patient facility	C	-	C	C	
Medical cannabis dispensary	R	-	R	R	Part 9.75, Chapter 20.80
Cannabis retail storefront	R	-	R	R	Part 9.75, Chapter 20.80
Medical cannabis collective dispensary site only	R	-	R	R	Part 9.75, Chapter 20.80
Medical clinic/out-patient facility	P	-	P	P	
Office, Medical	P	-	P	P	
Veterinary clinic	P	-	P	P	

General Services					
Bed and Breakfast Inn	-	-	P	P	Part 2, Chapter 20.80
Dry cleaner	P	-	P	P	
Hotel/Motel	-	-	P	P	
Laundromat	P	-	P	P	
Maintenance and repair, Small Household Appliances	P	-	P	P	
Messenger services	P	-	P	P	Note 2
Mortuary and Funeral Services	P	-	P	P	
Personal Services	P	-	P	P	Section 20.200.880
Photo processing and developing	P	-	P	P	
Printing and publishing	P	-	P	P	
Social service agency	P	-	P	P	
Offices and Financial Services					
Automatic teller machine	P	-	P	P	Section 20.80.200
Business Support Use	P	-	P	P	
Financial institution	P	-	P	P	
Office, General Business	P	-	P	P	
Public, Quasi-Public and Assembly Uses					
Cemetery	-	-	-	-	

Church/religious assembly	C	-	C	C	
Museums, libraries, parks, playgrounds, or community centers (publicly operated)	P	-	P	P	
Museums, libraries, parks, playgrounds, or community centers (privately operated)	C	-	C	C	
Residential/Mixed Use					
Multiple dwellings	-	C	C	C	Section 20.75.210; Note 13
Residential accessory uses, including, recreation facilities, mail rooms, laundry facilities, storage and other similar facilities	-	P	P	P	Section 20.75.210
Home Occupation	-	P	P	P	Part 9, Chapter 20.80
Mixed Use/ground floor commercial with residential above	C	-	C	C	Section 20.75.210; Note 14
100% deed-restricted affordable housing	P	P	P	P	Note 15
Emergency Residential Shelter	-	-	-	-	Section 20.80.500
Live/Work Uses	C	-	S	-	Part 9.5, Chapter 20.80 & Section 20.75.210

Residential Care Facility, six or fewer persons	-	P	P	P	Section 20.75.210
Residential Service Facility, six or fewer persons	-	P	P	P	Section 20.75.210
Residential Care Facility for seven or more persons	-	C	C	C	Section 20.75.210
Residential Service Facility for seven or more persons	-	C	C	C	Section 20.75.210
Single Room Occupancy (SRO) Residential Hotel	-	-	C	C	Note 13; Part 15, Chapter 20.80
Single Room Occupancy (SRO) Living Unit Facility	-	-	C	C	Note 13; Part 15, Chapter 20.80; Section 20.75.210
Drive-Through Uses					
Drive Through Uses in conjunction with any use	-	-	C	C	Section 20.75.330
Recycling Uses					
Reverse Vending Machine	A	P	A	A	Part 13, Chapter 20.80
Small Collection Facility	A	-	A	A	Part 13, Chapter 20.80
Transportation and Utilities					
Data Center	-	-	-	-	

Community television antenna systems	-	-	C	C	
Off-site, Alternating Use and Alternative Parking Arrangements	S	S	S	S	Section 20.90.200
Off-street Parking Establishment	C	-	C	C	Section 20.75.130 B.3
Utility Structures	A	A	A	A	Part 19, Chapter 20.80 and Section 20.75.120 A.4
Utility Facilities, excluding corporation yards, storage or repair yards and warehouses	C	C	C	C	
Television, radio studios without antenna/dishes	-	-	-	-	
Short term parking lot for uses or events other than on-site	-	-	C	C	Note 6
Wireless Communications Antenna	-	-	C	C	Note 12, Sections 20.100.1300, 20.80.1915
Wireless Communications Antenna, Slimline Monopole	-	-	S	S	Note 12, Sections 20.80.1900, 20.80.1915
Wireless Communications Antenna, Building Mounted	P	P	P	P	Note 12, Sections 20.80.1910, 20.80.1915

Electrical Power Generation					
Private Electrical Power Generation Facility	-	-	C	C	Note 2
Co-generation Facility	S	-	S	S	
Stand-by or Backup Electrical Power Generation Facility					
Facilities that do not exceed noise or air standards	A	S	A	A	
Facilities that do exceed noise or air standards	C	-	C	C	
Temporary Stand-by or Backup Electrical Power Generation Facility	P	-	P	P	
Solar Photovoltaic Power system	P	P	P	P	Section 20.100.610 C.7
Vehicle Related Uses					
Accessory installation, passenger vehicles and pick-up trucks, indoors	P	-	P	P	
Auto broker, wholesale, no on-site storage	P	-	P	P	
Car wash, detailing	-	-	-	-	
Gasoline Service Station or Charge Station	-	-	-	-	
Gasoline Service Station or Charge Station with incidental service and repair	-	-	-	-	

Glass sales, installation and tinting	P	-	P	P	Note 10
Sale or lease, commercial vehicles	-	-	-	-	Note 10
Sale or lease passenger vehicles, pick-up trucks not exceeding 25 feet in length, and motorcycles, indoors	S	-	S	S	Note 9, Note 10
Rental passenger vehicles, pick-up trucks not exceeding 25 feet in length, and motorcycles	S	-	S	S	Note 2
Sale, vehicle parts	S	-	S	S	Note 8
Tires, batteries, lube, oil change, smog check station, air conditioning servicing of passenger vehicles and pick-up trucks	S	-	S	S	Note 7, Note 10
Historic Reuse					
Historic Landmark Structure reuse	S	C	S	S	Part 8.5 Chapter 20.80

Notes:

1. Landscaping materials, such as rock, mulch, and sand are limited to prepackaged sales.

2. No on-site storage of vehicles permitted.

3. Includes public and private colleges and universities, as well as extension programs and business schools.

4. Not a catering facility.

5. All uses involving any type of care for animals, including but not limited to grooming, boarding, or medical care must be conducted wholly inside a building.

6. Use must be less than twenty-four hours.

7. Non-engine and exhaust related service and repair allowed as incidental.

8. No outdoor sales areas or dismantling allowed.

9. Incidental repair of vehicles is prohibited.

10. All vehicle-related repair, service, and accessory or other installation shall be conducted within a fully enclosed building.

11. Pedestal charge stations that are incidental to a separate primary use, that do not impact on-site or off-site vehicular circulation, and that serve patrons or residents of the primary use on-site are permitted in all pedestrian oriented zoning districts.

12. Certain modifications of existing wireless facilities may be permitted with an Administrative Permit in accordance with Section 20.80.1915 of Chapter 20.80.

13. Transitional Housing is allowed as any residential housing type and must follow the permit process for such residential housing type.

14. Permanent Supportive Housing is allowed as a residential component of Mixed Use/ground floor commercial with residential above.

15. 100% deed-restricted affordable housing is a permitted use for residential housing type, and any commercial space requirements shall not apply; subject to conformance with General Plan policies and state law mandates. Refer to Chapter 20.195 for information regarding the ministerial approval process.

SECTION 9. A new Part is added to Chapter 20.80 of Title 20 of the San José Municipal Code, to be numbered, entitled and to read as follows:

Part 2.75
Accessory Dwelling Units

20.80.175 General

Pursuant to Section 65852.2(a) of the Government Code, this Section provides for the creation of Accessory Dwelling Units in areas zoned to allow single-family or multifamily dwelling residential use. An Accessory Dwelling Unit that conforms to all applicable requirements shall not be considered to exceed the allowable density for the lot upon which it is located and is deemed to be a residential use that is consistent with the existing General Plan and Zoning designations for the lot.

Pursuant to Section 65852.2(c) of the Government Code and notwithstanding any provisions stated in the streamline approval process or any other provision of this Title to the contrary, Accessory Dwelling Units shall be allowed pursuant to the provisions of this Part:

A. Zoning District. An Accessory Dwelling Unit that is attached to or detached from a one-family dwelling shall be permitted on a lot, consisting of an existing single-family and multi-family dwelling unit.

B. Number of Units Allowed

1. Single-Family.

On lots that contain an existing or proposed single-family dwelling, one (1) attached or one (1) detached Accessory Dwelling Unit, and one (1) Junior Accessory Dwelling Unit may be created in any order totaling two (2) units.

2. Multifamily.

On lots that contain an existing or proposed multifamily dwelling structure, one (1) attached or one (1) detached Accessory Dwelling Unit is allowed per lot.

C. Density. An Accessory Dwelling shall not be included in calculation of residential density for the purpose of determining General Plan conformance.

D. Development Standards

1. Maximum Floor Area. The Accessory Dwelling Units shall comply with all of the following:

a. If there is an existing primary dwelling, the total floor area of an attached Accessory Dwelling Unit shall not exceed fifty percent (50%) of the existing primary dwelling.

b. One thousand (1,000) square feet for an Accessory Dwelling on a lot with an area of up to nine thousand (9,000) square feet.

c. One thousand two hundred (1,200) square feet for an Accessory Dwelling on a lot with an area greater than nine thousand (9,000) square feet.

d. No maximum for conversion of an existing detached Accessory structure into an Accessory Dwelling Unit.

Table 20-55

Lot size	Maximum floor area
Up to 9,000 square feet	1,000 square feet
Greater than 9,000 square feet	1,200 square feet

2. Height.

a. A detached one-story Accessory Dwelling shall be limited to a maximum height of eighteen (18) feet.

b. A detached two-story Accessory Dwelling shall be limited to a maximum roof height of twenty-five (25) feet above grade.

c. A detached Accessory Dwelling shall not exceed two (2) stories.

d. An attached Accessory Dwelling shall be limited to a maximum roof height of twenty-five (25) feet above grade and not exceed two (2) stories.

3. Setbacks.

a. Front setback: Front setback of the zoning district, unless such setback prohibits an eight hundred (800) square foot Accessory Dwelling Unit.

b. Side setback: 0 feet

c. Rear setback: 0 feet

d. Existing structures converted into an Accessory Dwelling Unit may maintain existing setbacks.

e. Second Story Accessory Unit - A minimum setback of four (4) feet from the side and rear lot lines, with an overhang of one (1) foot or less, shall be required for any second story of a detached Accessory Dwelling.

f. Additional setback requirements may apply under the Building and Fire Codes or as a result of "no-build" easements or require compliance with existing easement restrictions.

4. Required Facilities.

An Accessory Dwelling shall include all of the following facilities:

a. A kitchen (including a sink, food preparation counter, storage cabinets, and permanent cooking facilities such as a range or cooktop that meet Building Code standards); and

b. A full bathroom (including sink, toilet, and shower and/or bath facilities).

5. Siting.

a. An attached Accessory Dwelling shall share a common wall with the One-Family or multiple family Dwelling or shall share an integral roof structure having the same framing system and roof covering as the One-Family or multiple family Dwelling and shall be separated

from the One-Family or multiple family Dwelling by no more than ten (10) feet at any given point.

b. A detached Accessory Dwelling shall be located in the rear yard of the lot of the One-Family Dwelling or shall be required to meet minimum setback requirements for an Accessory Building in accordance with Section 20.30.500, except that a new detached Accessory Dwelling Unit that maintains a minimum interior side setback of four (4) feet may be located at a distance of forty-five (45) feet from the front property line.

c. A detached Accessory Dwelling shall be located at least six (6) feet away from the One-Family or multiple family Dwelling.

d. A detached Accessory Dwelling may be attached to an existing or proposed accessory building, including a garage so long as current Building Code requirements and requirements to address fire or safety hazards are met. A detached Accessory Dwelling that is attached to an existing or proposed accessory building, including a detached Accessory Dwelling constructed above an existing or proposed Accessory Building or basement, shall not have any connecting opening between the Accessory Building and Accessory Dwelling, unless all connected areas meet current Building Code and Fire Code requirements, and the maximum gross square footage for all connected areas does not exceed the limits set forth in Section 20.80.175C and/or Section 20.80.175 G above. Notwithstanding the provisions above, a detached Accessory Dwelling that is attached to an existing or proposed garage may have a connecting opening, provided the garage does not have a connecting opening to any other Accessory Building not used as a

garage, and such garage area shall not be included in the maximum Accessory Dwelling floor area tabulation. All Accessory Buildings and Structures shall meet the requirements in accordance with Section 20.30.500, and all connected areas shall meet current Building Code and Fire Code requirements.

e. The cumulative total of the rear yard covered by the Accessory Dwelling, Accessory Buildings, and Accessory Structures, except pools, shall not exceed forty percent (40%) of the rear yard except that such ratio shall not prohibit an eight hundred (800) square foot Accessory Dwelling Unit with minimum four (4) foot side and rear yard setbacks.

f. If situated on a lot that is equal to or greater than one-half (½) an acre in size, an Accessory Dwelling shall be located more than one hundred (100) feet from a riparian corridor as measured from top of bank or vegetative edge, whichever is greater.

6. Roof. Roof height shall be determined in accordance with San José Municipal Code Section 20.200.510.

E. Design Standards. Accessory Dwellings shall comply with the following design standards:

1. Any new addition for an attached Accessory Dwelling Unit, on a property listed on the San José Historic Resources Inventory, shall be located along the rear wall of an existing primary dwelling, unless the Accessory Dwelling Unit is fully enclosed within the existing building walls.

a. The attached Accessory Dwelling Unit shall not result in the enclosure of or net loss of any existing porch, unless such porch is located along the rear façade, and the enclosure of or net loss does not exceed ten percent (10%) or more of an existing porch.

b. The roofline and materials of the attached Accessory Dwelling Unit shall be differentiated from the primary dwelling.

c. A detached Accessory Dwelling Unit may be constructed on any property listed on the City's Historic Resources Inventory, provided the Accessory Dwelling Unit is set back at least forty-five (45) feet from the front property line.

2. The front door of any attached Accessory Dwelling shall not be located on the same facade as the front door of the One-Family Dwelling if that facade fronts onto a street, unless all other locations for placement of the Accessory Dwelling front door would require a passageway as defined in Government Code Section 65852.2(i)(5).

3. Any portion of balconies and landings with areas greater than fifty percent (50%) enclosed with walls and covered shall be included in the total unit floor area, measured to exterior framing, except that the floor area of an internal stairwell will be counted once.

4. Any porches or balconies that project beyond the footprint of the Accessory Dwelling Unit shall be included in the cumulative total of the rear yard coverage tabulation.

F. Application-Owner Certification. As part of the building permit application process for an Accessory Dwelling, the owner of record shall submit a

declaration, under penalty of perjury, stating that the Accessory Dwelling is not intended for sale separate from the primary residence, but may be rented. Nothing in this Section shall be deemed to affect the legal status of an Accessory Dwelling built with a lawfully issued permit if the property is subsequently transferred or sold, or if the one-family dwelling or Accessory Dwelling is subsequently rented or leased.

The requirements of Subsection F shall not apply to an Accessory Dwelling Unit constructed on a property developed by a Qualified Non-profit Corporation and there is an enforceable restriction on the use of the land pursuant to a recorded contract between the qualified buyer and the qualified nonprofit corporation that satisfies all of the requirements specified in paragraph (10) of subdivision (a) of Section 402.1 of the Revenue and Taxation Code. Accessory Dwelling Units meeting these requirements may be sold or conveyed separately from the primary residence to a qualified buyer in conformance with Government Code Section 65852.25.

G. Compliance with Building and Zoning Codes. An Accessory Dwelling shall be built in accordance with the building code set forth in Title 24 of the San José Municipal Code and in conformance with Title 20 of the San José Municipal Code.

H. Located on One Lot. An Accessory Dwelling shall be located within the same subdivision unit and on the same legal parcel as the One-Family Dwelling or multiple dwelling to which it is ancillary.

I. Parking. No off-street parking spaces are required for an Accessory Dwelling Unit, and the applicant shall not be required to replace any covered parking spaces that are removed or demolished as a result of the construction of the Accessory Dwelling Unit.

J. Other Legal Requirements. Accessory Dwelling Units shall comply with all other applicable legal requirements that are not inconsistent with this Chapter.

20.80.176 Streamlined Approval

Pursuant to Section 65852.2(e) of the Government Code, this Section provides for the streamlined and ministerial approval of certain Accessory Dwelling Units. This Section may be used instead of, but not in addition to, the Accessory Dwelling Units allowed pursuant to Section 65852.2(a) of the Government Code nor Section 20.80.175 of the San Jose Municipal Code. Accessory Dwelling Units pursuant to the provisions of this Part, shall be allowed:

A. Single-Family. On lots that contain an existing or proposed single-family dwelling, a maximum of one (1) converted Accessory Dwelling Unit, one (1) detached new construction Accessory Dwelling Unit, and one (1) Junior Accessory Dwelling Unit may be created in any order without prejudice; totaling up to three units if all of the following apply:

1. The Accessory Dwelling Unit or Junior Accessory Dwelling Unit is within the proposed space of a single-family dwelling or existing space of a single-family dwelling or Accessory Structure and may include an expansion of not more than one hundred fifty (150) square feet beyond the same physical dimensions as the existing Accessory Structure. An expansion beyond the physical dimensions of the existing Accessory Structure shall be limited to accommodating ingress and egress.

2. The space has exterior access from the proposed or existing single-family dwelling.

3. The proposed detached, new construction, Accessory Dwelling Unit that does not exceed four-foot side and rear yard setbacks. The side and rear setbacks are sufficient for fire and safety.

4. The front setback shall be in compliance with the underlying zoning district and not to prohibit an eight hundred (800) square foot Accessory Dwelling Unit.

5. The Accessory Dwelling Unit has a total floor area of no more than eight hundred (800) square feet.

6. The Accessory Dwelling Unit has a height of no more than eighteen (18) feet.

7. The Junior Accessory Dwelling Unit complies with the requirements of Section 65852.22.

B. Multifamily. On lots that contain an existing or proposed multifamily dwelling structure, up to two (2) detached Accessory Dwelling Units are allowed, and at least one Accessory Dwelling Unit may be created within a multifamily dwelling structure; if all of the following apply;

1. The maximum number of Accessory Dwelling Units created shall not exceed twenty-five percent (25%) of the existing multifamily dwelling units prior to the addition of any Accessory Dwelling Units.

2. Multiple Accessory Dwelling Units within the portions of existing multifamily dwelling structures that are not used as livable space, including, but not limited to, storage rooms, boiler rooms, passageways,

attics, basements, or garages, if each unit complies with state building standards for dwellings.

3. Each proposed detached Accessory Dwelling Unit does not exceed four-foot side and rear yard setbacks. The side and rear setbacks are sufficient for fire and safety.

4. Each proposed detached Accessory Dwelling Unit has a total floor area of no more than eight hundred (800) square feet.

5. Each proposed detached Accessory Dwelling Unit has a height of no more than eighteen (18) feet.

20.80.178 Junior Accessory Dwelling Units—Single Family Dwelling Lot

Notwithstanding any other provision of this Title to the contrary, Junior Accessory Dwelling Units, for lots consisting of single-family dwellings, that meet all of the following criteria shall be allowed pursuant to the provisions of this Part:

A. Shall not exceed five hundred (500) square feet and constructed within the existing walls of the primary dwelling unit, and any exterior alteration is only limited to accommodating ingress/egress requirements.

B. Shall include a separate entrance from the main entrance to the primary dwelling unit.

C. Shall include an interior entry to the main living area if sanitation facilities are shared with the existing primary dwelling.

D. Shall require owner-occupancy in the single-family residence in which the Junior Accessory Dwelling Unit will be permitted. Owner-occupancy shall not be required if the owner is another governmental agency, land trust, or housing organization.

E. Shall require the recordation of a deed restriction, which shall run with the land, and which shall be on file with the City, to include restriction on the size and attributes of the Junior Accessory Dwelling Unit that conforms with this Section; and prohibition on the sale of the Junior Accessory Dwelling Unit separate from the sale of the single-family residence, including a statement that the deed restriction may be enforced against future purchasers.

F. Shall include at least an efficiency kitchen which shall include all of the following:

1. A cooking facility with appliances; and

2. A food preparation counter and storage cabinets that are of reasonable size in relation to the size of the Junior Accessory Dwelling Unit.

G. A Junior Accessory Dwelling Unit may also be allowed on the same lot with an attached or detached Accessory Dwelling Unit, provided the following criteria are met:

1. The Accessory Dwelling Unit is fully detached, and the Junior Accessory Dwelling Unit is within the proposed space of a single-family dwelling or existing space of a single-family dwelling; and

H. No additional parking shall be required for construction of a Junior Accessory Dwelling Unit.

I. When a garage is converted into a Junior Accessory Dwelling Unit, any off-street parking spaces that were provided by such garage are not required to be replaced.

20.80.179 Amnesty Program

Notwithstanding any other provision of this Title, Accessory Dwelling Units that meet all of the provisions set forth in the City of San José Accessory Dwelling Unit Amnesty Program shall be allowed.

SECTION 10. Section 20.200.324 of Chapter 20.200 of Title 20 of the San José Municipal Code is amended to read as follows:

20.200.324 Dwelling, Junior Accessory Dwelling Unit or JADU

"Junior Accessory Dwelling Unit" or "Junior Accessory Dwelling" means a residential unit that is not more than five hundred (500) square feet in size, and contained entirely within an existing or proposed single-family structure and meets all of the requirements of Section 20.80.178. A Junior Accessory Dwelling Unit may include separate sanitation facilities, or may share sanitation facilities with the existing or proposed single-family structure.

SECTION 11. A new Section is added to Chapter 20.200 of Title 20 of the San José Municipal Code, to be numbered, entitled and to read as follows:

20.200.547 Housing, Affordable Deed Restricted

A 100% “deed-restricted affordable housing” development is a type of housing project designed to provide affordable housing to low-income households earning 80% or less of the Area median Income, and the term “deed-restricted” refers to the fact that the

property is subject to certain restrictions and/or limitations recorded on the property to ensure long-term affordability of those units.

SECTION 12. A new Section is added to Chapter 20.200 of Title 20 of the San José Municipal Code, to be numbered, entitled and to read as follows:

20.200.549 Housing, Employee

“Employee Housing" as defined and regulated by the Section 17008, "Employee Housing Act,” of the California Health and Safety Code.

A. Pursuant to Section 17021.5 of the California Health and Safety Code, employee housing for up to six (6) persons per dwelling at one time may be permitted in a Zoning district that includes a one-family dwelling unit as an enumerated use, with the same permitting process applicable to a One-Family Dwelling.

B. Pursuant to Section 17021.6 of the California Health and Safety Code, any employee housing consisting of no more than thirty-six (36) beds in a group quarter, or twelve (12) units or spaces designed for use by a single family or household, or any agricultural (farm) employee housing shall be deemed an agricultural land use for the purposes of this Section. Such use may be subject to a streamlined ministerial approval process and siting requirements pursuant to Section 17021.8 of the California Health and Safety Code.

PASSED FOR PUBLICATION of title this 5TH day of December, 2023, by the following vote:

AYES:	CANDELAS, COHEN, FOLEY, JIMENEZ, ORTIZ, TORRES, KAMEI.
NOES:	DAVIS, DOAN, BATRA, MAHAN.
ABSENT:	NONE.
DISQUALIFIED:	NONE.

MATT MAHAN
Mayor

ATTEST:

TONI J. TABER, CMC
City Clerk